

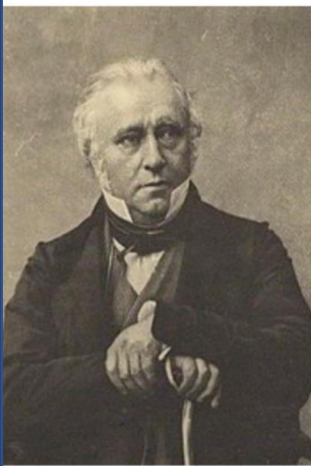
CHAPTER – 1

Nature and Stages of Crime

THE INDIAN PENAL CODE, 1860

Introduction:

Thomas Babington Macaulay

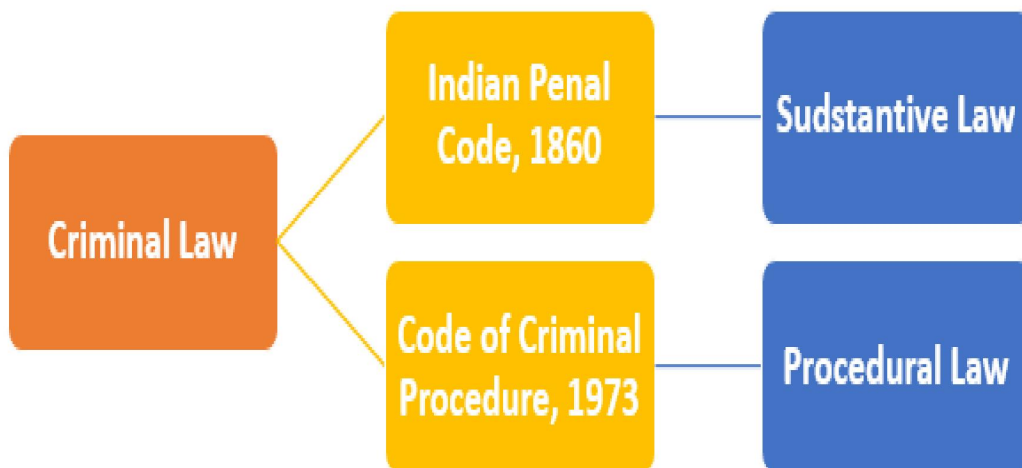


In 1834, the first Indian Law Commission was constituted to investigate into the jurisdiction, powers and rules of the existing courts, and police establishments. The Indian Penal Code was drafted by the first Indian Law Commission under the president ship of Lord Macaulay and was submitted to the Governor-General of India in Council in 1837.

DO YOU KNOW?

SUBSTANTIVE OR PROCEDURAL LAW?

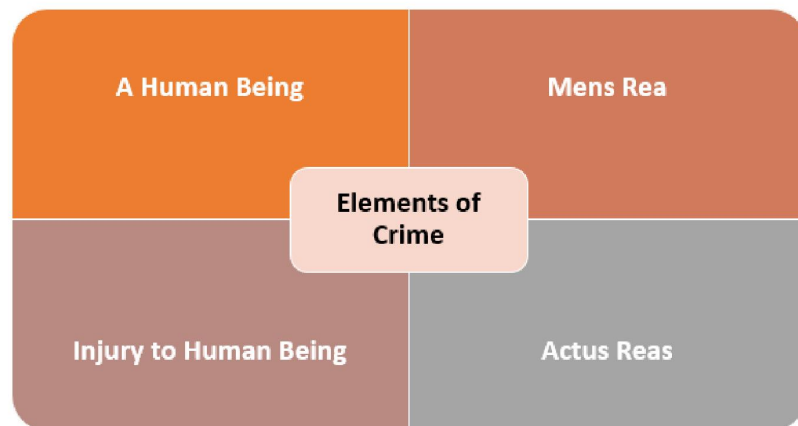
The Indian Penal Code, 1860 is the substantive law of crimes. It defines acts which constitute an offence and lays down punishment for the same. The procedural law through which the Indian Penal Code is implemented is the Criminal Procedure Code, 1973.



Crime:

The Indian Penal Code, nowhere defines the term crime. It can be understood as **an act which is both forbidden by law and revolting to the moral sentiments of the society.**

Elements of Crime:



The four elements that go to constitute a crime are as follows:

Firstly, a human being under a legal obligation to act in a particular way and a fit subject for the infliction of appropriate punishment; **secondly**, an evil intent or mens rea on the part of such human being; **thirdly**, actus reus, i.e., act committed or omitted in furtherance of such an intent; and **fourthly**, an injury to another human being or to society at large by such an act.

The actus reus may be an act of omission or an act of commission but in order that the actus reus may be punishable it must jointly be accompanied by a guilty mind. However, in some cases punishment has been awarded although actus reus is not consummated. They are known to us as inchoate crimes e.g., attempt, conspiracy or even some cases of preparation.

Important Maxim:

actus non facit reum, nisi mens sit rea- A person cannot be convicted and punished in a proceeding of a criminal nature unless it can be shown that he had a guilty mind.

Stages of Crime:

There are basically four major stages of crime. They are the following:



Intention: The first stage for the commission of crime is the intention **also known as mental stage**. There is an intention to cause harm but no action has been yet taken to at upon the same. Mere intention to commit an offence without any followed act cannot constitute an offence, i.e. the law does not take notice of an intention.

Preparation: The second stage is preparation, where the intention of the person starts to take the physical form. It is a process of arranging the necessary measures for committing the intended criminal act. Like intention,

preparation is also not considered as a crime as the person making the preparations has a chance of having change of mind at this stage and may abandon his course of action.

Whereas there are certain **exceptions under the Indian Penal Code, 1860 where preparation can be treated as a crime** and punished for the same. They are the following:

- (a) Section 122: Preparation to wage war against the Government
- (b) Section 126: Preparation to commit depredation on territories of a power at peace with Government of India
- (c) Sections 233-235: Preparation for counterfeiting of coins or Government stamp [Sections 255 and 257].
- (d) Section 399: Preparation to commit dacoity.

Attempt: It is that stage of the crime where physical action is taken by the person to commit the crime and if left unstopped it causes or may cause injury to someone.

The three essentials of the attempt are the following:

- (a) Guilty intention to commit an offence;
- (b) Some act done towards the commission of the offence;
- (c) The act must fall short of the completed offence.

Please Note: An attempt to commit a crime is considered a crime.

Commission: This is the last stage of crime where the crime takes place, or we can say it is the stage of the offence being accomplished or completed.

OFFENCE

Offence is an action which harms others, disturb the tranquillity of a society, waging war against the State, etc. The offences are of various types such as against human body, State and terrorism, property, women and children and public tranquillity.

Section 40 of the Indian Penal Code, defines the word Offence. It states that the word "offence" denotes a thing made punishable by the Indian Penal Code, 1860.

DIFFERENCE BETWEEN OFFENCE AND CRIME

CRIME	OFFENCE
A crime includes every act which is punishable by the criminal Law. E.g. Crime under dowry prohibition act, NDPS Act, Information Technology Act, etc.	An offence in particular means any act which is punishable only under the Indian Penal Code.
It has a broader aspect	It has narrower aspect
There are 'n' number of criminal acts in India.	It has been defined under Section 40 of IPC

SCHEME OF THE ACT

The Penal Code can broadly be divided into four segments. Chapters I to V contain general matters relating to the extent, definitions, principles of liability etc. Chapter VI to XV deal with public matters between individuals and the state. Chapters XVI to XXII are mainly concerned with offences committed by

individuals against individuals or legal persons other than the state. The last chapter XXIII is residuary in nature, laying down the principles of punishment for attempt to commit an offence if no specific provision has been made therefor.

The Indian Penal Code, 1860, consists of XXIII (23) chapters and 511 sections.

Chapter	Subject Matter
Chapter I	INTRODUCTION
Chapter II	GENERAL EXPLANATIONS
Chapter III	PUNISHMENTS
Chapter IV	GENERAL EXCEPTIONS
Chapter V	ABETMENT
Chapter VA	CRIMINAL CONSPIRACY
Chapter VI	OFFENCES AGAINST THE STATE
Chapter VII	OFFENCES RELATING TO THE ARMY, NAVY AND AIR FORCE
Chapter VIII	OFFENCES AGAINST THE PUBLIC TRANQUILLITY
Chapter IX	OFFENCES BY OR RELATING TO PUBLIC SERVANTS
Chapter IXA	OFFENCES RELATING TO ELECTIONS
Chapter X	CONTEMPTS OF THE LAWFUL AUTHORITY OF PUBLIC SERVANTS
Chapter XI	FALSE EVIDENCE AND OFFENCES AGAINST PUBLIC JUSTICE
Chapter XII	OFFENCES RELATING TO COIN AND GOVERNMENT STAMPS
Chapter XIII	OFFENCES RELATING TO WEIGHTS AND MEASURES
Chapter XIV	OFFENCES AFFECTING THE PUBLIC HEALTH, SAFETY, CONVENIENCE, DECENCY AND MORALS
Chapter XV	OFFENCES RELATING TO RELIGION
Chapter XVI	OFFENCES AFFECTING THE HUMAN BODY
Chapter XVII	OFFENCES AGAINST PROPERTY
Chapter XVIII	OFFENCES RELATING TO DOCUMENTS AND TO PROPERTY MARKS
Chapter XIX	CRIMINAL BREACH OF CONTRACTS OF SERVICE
Chapter XX	OFFENCES RELATING TO MARRIAGE
Chapter XXA	CRUELTY BY HUSBAND OR RELATIVES OF HUSBAND
Chapter XXI	DEFAMATION
Chapter XXII	CRIMINAL INTIMIDATION, INSULT AND ANNOYANCE
Chapter XXIII	ATTEMPTS OF COMMIT OFFENCES